

Notice Inviting Tender

****Project:**** Construction of a Two-Storey Community Health Centre ****Employer:**** Municipal Public Health Department ****Tender Ref:**** TSHC-2024-001 ****Date of Issue:**** 01 August 2024 ****Last Date for Submission:**** 15 September 2024, 15:00 hrs IST ****Site Location:**** Plot No. 12, Sector 7, Near City Bus Stand, District Central ****Estimated Cost:**** INR 4,85,00,000 (Rupees Four Crore Eighty-Five Lakhs only) ****Earnest Money Deposit:**** INR 4,85,000 ****Validity of Tender:**** 120 days from the date of opening

A complete set of tender documents comprising the General Conditions of Contract, Special Conditions of Contract, Bill of Quantities, Drawings, and Specifications may be downloaded from the employer portal from 01 August 2024 to 10 September 2024.

A pre-bid meeting will be held at 11:00 hrs IST on 25 August 2024 at the employer's office. Queries must be submitted online by 20 August 2024.

General Conditions of Contract

1. Definitions and Interpretations

In these Conditions, the following words and expressions shall have the meanings assigned to them except where the context otherwise requires.

2. Engineer-in-Charge

The Engineer-in-Charge shall be the officer appointed by the Employer for the purpose of this Contract.

3. Payment Terms

The Employer shall pay the Contractor the amount due under the Interim Payment Certificates within 45 days of the date of issue of the certificate. No interest shall be payable on delayed payments until the delay exceeds 60 days, after which interest at 8% per annum shall be payable on the delayed amount.

4. Price Escalation

The contract price shall be a firm price. No price escalation or variation in the rates, except for statutory variations in taxes and duties, shall be allowed during the entire contract period.

5. Liquidated Damages

If the Contractor fails to complete the works within the time for completion, the Contractor shall pay to the Employer liquidated damages at the rate of 0.5% of the contract price per week of delay. The maximum aggregate of liquidated damages shall be limited to 5% of the contract price.

6. Defect Liability and Retention

The Defects Liability Period shall be 24 months from the date of practical completion. During this period, the Contractor shall remedy any defect at its own cost. The Employer shall retain 5% of each Interim Payment Certificate as retention money until the issue of the Defects Liability Certificate.

7. Termination for Convenience

The Employer may, by giving 30 days' written notice, terminate this Contract for its own convenience. In the event of such termination, the Contractor shall be paid for the works executed up to the date of termination and reasonable demobilisation costs as certified by the Engineer-in-Charge.

8. Insurance

The Contractor shall take out and maintain All Risks Insurance, Third Party Insurance, and Workmen's Compensation Insurance for the full contract value.

9. Dispute Resolution

Any dispute arising out of or in connection with this Contract shall be resolved through arbitration in accordance with the Arbitration and Conciliation Act, 1996, by a sole arbitrator mutually appointed by the parties.

Addendum No. 1 to Tender Documents

****Project:** Construction of a Two-Storey Community Health Centre ****Tender Ref:****
TSHC-2024-001 ****Date:**** 05 August 2024**

1. Clarification to Clause 4 (Price Escalation)

It is clarified that, notwithstanding the firm-price basis, the Employer shall allow price variation only for the steel component of the reinforcement work based on the published steel price index on the first day of the month of tender opening and the month of supply. No other material or component shall be eligible for escalation.

2. Extension of Tender Submission Date

The last date for submission of tenders is extended from 15 September 2024 to 22 September 2024, 15:00 hrs IST.

3. Additional Drawing

Drawing No. TSHC-2024-001/ADD-1 showing revised column locations for the ground floor is added to the tender set. The Contractor shall price the works based on the revised drawing.

4. Deleted Specification Item

Item S-45 (marble flooring in waiting area) is deleted from the Schedule of Specifications. No substitute is required and the corresponding BOQ item is withdrawn.